

US Cosmetics Regulation FD&C + MoCRA (MoCRA 1)

MoCRA Cosmetic Facility Registration and Product Listing

Title: Cosmetic Facility Registration and Product Listing

Jurisdiction: International

Category: Standards

Source Citation: Modernization of Cosmetics Regulation Act of 2022 (MoCRA), §607; Federal Food, Drug, and Cosmetic Act (FD&C Act), §607; 21 U.S.C. §364c

Plain English Summary:

MoCRA requires persons who own or operate facilities that manufacture or process cosmetics for distribution in the United States to register those facilities with FDA. It also requires the responsible person for each marketed cosmetic product to submit a cosmetic product listing to FDA and update the listing annually.

For an Ayurvedic cosmetics startup, this means that if your company manufactures or processes an Ayurvedic cream, oil, shampoo, lotion, etc. for the U.S. market, you need to determine whether the facility must be registered and whether each product must be listed with FDA. FDA currently requires facility registration renewal every two years.

The Exact Legal Text:

21 U.S.C. §364c(a)(1) Initial registration

Every person that, on December 29, 2022, owns or operates a facility that engages in the manufacturing or processing of a cosmetic product for distribution in the United States shall register each facility with the Secretary not later than 1 year after December 29, 2022.

Every person that owns or operates a facility that first engages, after December 29, 2022, in manufacturing or processing of a cosmetic product for distribution in the United States, shall register with the Secretary such facility within 60 days of first engaging in such activity or 60 days after the deadline for registration under subparagraph (A), whichever is later.

21 U.S.C. §364c(b)(2) Contents of facility registration

The registration under subsection (a) shall contain

(A) the facility's name, physical address, email address, and telephone number;

(B) with respect to any foreign facility, the contact for the United States agent of the facility, and, if available, the electronic contact information;

(C) the facility registration number, if any, previously assigned by the Secretary under subsection (d);

(D) all brand names under which cosmetic products manufactured or processed in the facility are sold; and

(E) the product category or categories and responsible person for each cosmetic product manufactured or processed at the facility.

21 U.S.C. §364c(c)(1) Cosmetic product listing

For each cosmetic product, the responsible person shall submit to the Secretary a cosmetic product listing, or ensure that such submission is made, at such time and in such manner as the Secretary may prescribe.

21 U.S.C. §364c(c)(2) Product listing

The responsible person of a cosmetic product that is marketed on December 29, 2022, shall submit to the Secretary a cosmetic product listing not later than 1 year after December 29, 2022, or for a cosmetic product that is first marketed after December 29, 2022, within 120 days of marketing such product in interstate commerce.

21 U.S.C. §364c(c)(4)(A) Contents of product listing

Each such cosmetic product listing shall include

(i) the facility registration number of each facility where the cosmetic product is manufactured or processed;

(ii) the name and contact number of the responsible person and the name for the cosmetic product, as such name appears on the label;

(iii) the applicable cosmetic category or categories for the cosmetic product;

(iv) a list of ingredients in the cosmetic product, including any fragrances, flavors, or colors, with each ingredient identified by the name, as required under section 701.3 of title 21, Code of Federal Regulations (or any successor regulations), or by the common or usual name of the ingredient; and

(v) the product listing number, if any previously assigned by the Secretary under subsection (d).

21 U.S.C. §364c(c)(5) Annual updates

A responsible person that is required to submit a cosmetic product listing shall submit any updates to such cosmetic product listing annually.

Important Compliance Point:

The facility registration and product listing are not an FDA approval or certification of the cosmetic. FDA specifically states that registration/listing is not a cosmetic approval program.

Also, FDA's current system requires covered facilities to renew registration every two years, while cosmetic product listings are updated annually.

Keywords/Triggers:

MoCRA facility registration, cosmetic product listing, FDA cosmetics registration, Ayurvedic cosmetic FDA, cosmetic facility registration USA, MoCRA product listing, responsible person cosmetics, 21 USC 364c